

CITY COUNCIL MEETING MINUTES

6:00 PM – April 18, 2016
Cadillac City Hall – 200 N. Lake St. - Cadillac, Michigan 49601

CALL TO ORDER

Mayor Filkins called the City Council meeting to order at approximately 6:00 pm.

PLEDGE OF ALLEGIANCE

ROLL CALL

Council Present:	Wohlfeill, Meinhardt, Spoelman, Schippers, Mayor Filkins
Council Absent:	None
Staff Present:	Peccia, Roberts, Wallace, DeWitt, Eller, Dietlin, Veddler, Homier, Wasson

APPROVAL OF AGENDA

2016-088 Approve agenda as presented.

Motion was made by Wohlfeill and supported by Schippers to approve the agenda as presented.

Motion unanimously approved.

PUBLIC COMMENTS

There were no public comments.

CONSENT AGENDA

Spoelman pointed out there was no reference to the discussion regarding storm water runoff included in the work session minutes.

Spoelman requested a specific reference be added to the final paragraph of the work session minutes regarding the need to capture storm water runoff and to review opportunities to accomplish that objective in the future.

2016-089 Remove work session minutes from consent agenda.

Motion was made by Schippers and supported by Wohlfeill to remove the minutes from the work session held on April 14, 2016 from the consent agenda.

Motion unanimously approved.

2016-090 Amend work session minutes.

Motion was made by Spoelman and supported by Schippers to amend the minutes from the work session held on April 14, 2016 to include the discussion related to storm water runoff into Lake Cadillac.

Motion unanimously approved.

2016-091 Approve consent agenda.

Motion was made by Spoelman and supported by Wohlfeill to approve the consent agenda as amended.

Motion unanimously approved.

COMMUNITY SPOTLIGHT

A. Snowmobile World Tour update.

Bill Bradfield, MichCanSka International Snowmobile Club, discussed the 2015 World Tour for Diabetes Research and presented a commemorative plaque to the Council.

PUBLIC HEARINGS

A. Public hearing for the 2016-2021 5-Year Capital Improvement Program.

Owen Roberts, Director of Finance, presented information on the 2016-2021 5-Year Capital Improvement Program (CIP). He noted that the CIP is a valuable tool used to plan, schedule, and coordinate activities. He stated that a capital project is defined as a physical asset or major software with a cost greater than \$7,500 and a useful life greater than one (1) year. He described the types of capital projects, related costs, and funding sources included and highlighted several projects included in the plan.

Mayor Filkins opened the public hearing.

There were no public comments.

Mayor Filkins closed the public hearing.

Spoelman expressed concerns about portions of North Blvd and Chestnut St. between Linden St. and Leeson Avenue.

Wohlfeill noted he had received a call from a resident regarding W. Division St.

Roberts stated a portion of W. Division St. will be resurfaced in 2016.

Spoelman pointed out the need for a sidewalk on W. Division.

2016-092 Approve 2016-2021 5-Year Capital Improvement Program.

Motion was made by Wohlfeill and supported by Schippers to approve the 2016-2021 5-Year Capital Improvement Program as presented.

Motion unanimously approved.

B. Public hearing for the 2016/2017 Annual Operating Budget.

Roberts noted the City Charter defines the budget process and explained the budget timeline. He stated that the budget period covers July 1, 2016 through June 30, 2017. He pointed out that the budget contains proposed expenditures of \$19,775,400, and noted that all millages levied by the City – including the City’s operating millage, police and fire retirement millage, and DDA millage – will be unchanged from the prior year. He summarized the highlights of the revenues and expenditures and also explained revenue challenges.

Peccia discussed the effort by the Michigan Municipal League (MML) to create fiscal statutory reform. He noted the www.savemycity.org website contains data about what is occurring statewide and how to become involved. He pointed out the City is moving forward with exciting placemaking programs that will initiate new growth within the community.

Roberts stated that the 2016/2017 Annual Operating Budget will be considered for adoption on May 16, 2016.

Mayor Filkins opened the public hearing.

There were no public comments.

Mayor Filkins closed the public hearing.

Spoelman inquired about the amount budgeted to be taken from reserves in 2016.

Roberts noted that \$99,000 was budgeted but he expects the actual amount to be less.

COMMUNICATIONS

- A. Request from the Cadillac Fire Department for the closure of Lester St. between Cobb St. and Hobart St. on May 17, 2016 from 7:00 pm to 10:00 pm for a Hazmat Drill.

2016-093 Approve street closure for CFD Hazmat Drill.

Motion was made by Wohlfeill and supported by Meinhardt to approve the closure of Lester St. between Cobb St. and Hobart St. on May 17, 2016 from 7:00 pm to 10:00 pm for a Hazmat Drill.

Motion unanimously approved.

INTRODUCTION OF ORDINANCES AND RESOLUTIONS

- A. Adopt resolution to introduce Ordinance Establishing General Appropriations Act for Fiscal Year 2017 and set a public hearing for May 16, 2016.

2016-094 Set public hearing for Ordinance 2016-05.

Motion was made by Schippers and supported by Spoelman to adopt resolution to introduce Ordinance Establishing General Appropriations Act for Fiscal Year 2017 and set a public hearing for May 16, 2016.

Motion unanimously approved.

- B. Adopt resolution to introduce ordinance to Amend Section 42-374 of Chapter 42 of the City Code to Increase Sewer Rates in the City of Cadillac 2.5% and set a public hearing for May 2, 2016.

2016-095 Set public hearing for Ordinance 2016-06.

Motion was made by Wohlfeill and supported by Schippers to adopt resolution to introduce Ordinance to Amend Section 42-374 of Chapter 42 of the City Code to Increase Sewer Rates in the City of Cadillac 2.5% and set a public hearing for May 2, 2016.

Motion unanimously approved.

- C. Adopt resolution to introduce ordinance to Amend Sections 42-201 and 42-202(3) of Chapter 42 of the City Code to Increase Water Rates in the City of Cadillac 2.5% and set a public hearing for May 2, 2016.

2016-096 Set public hearing for Ordinance 2016-07.

Motion was made by Spoelman and supported by Wohlfeill to adopt resolution to introduce Ordinance to Amend Sections 42-201 and 42-202(3) of Chapter 42 of the City Code to Increase Water rates in the City of Cadillac 2.5% and set a public hearing for May 2, 2016.

Motion unanimously approved.

CITY MANAGER'S REPORT

- A. Consumers Energy Street Light Contract Amendment.

Peccia stated anytime street lights are added or removed it requires an amendment to the agreement accordingly.

Peccia noted Consumers Energy Foundation will be presenting a \$50,000 grant to the City on Friday, April 22, 2016 at 10:00 am.

2016-097 Approve Consumers Energy Street Light Contract Amendment.

Motion was made by Spoelman and supported by Schippers to approve the Consumers Energy Street Light Contract Amendment as presented.

Motion unanimously approved.

- B. Bids and recommendation regarding Channel Monster for Wastewater Treatment Plant.

Peccia noted three (3) bids were received. He added the recommendation is to reject the bids and to acquire the unit directly through JWC Environmental which is the manufacturer of the Channel Monster. He stated the unit can be purchased at a cost of \$52,100 and will be installed by City personnel resulting in a savings of approximately \$20,000.

2016-098 Award contract for Channel Monster Grinder.

Motion was made by Schippers and supported by Wohlfeill to award the contract for the purchase of a Channel Monster Grinder to JWC Environmental in the amount of \$52,100.

Motion unanimously approved.

- C. Bids and recommendation regarding Automatic Refrigerated Wastewater Samplers.

Jeff Dietlin, Director of Utilities, noted two (2) bids were received. He stated one of bids received was for an alternative product that falls below the specifications required by the bid documents.

Peccia noted the recommendation is to award the contract to HESCO of Warren, Michigan in the amount of \$17,118.96.

2016-099 Award contract for Automatic Refrigerated Wastewater Samplers.

Motion was made by Wohlfeill and supported by Schippers to award the contract for the purchase of two (2) Automatic Refrigerated Wastewater Samplers to Hesco of Warren, Michigan in accordance with their bid.

Motion unanimously approved.

- D. Bids and recommendation regarding four (4) 2016 Work Trucks.

Peccia noted staff is not ready to move forward and requested the item be tabled.

2016-100 Table discussion regarding four (4) 2016 Work Trucks.

Motion was made by Schippers and supported by Meinhardt to table the discussion regarding four (4) 2016 Work Trucks.

Motion unanimously approved.

MINUTES OF BOARDS AND COMMISSIONS

- A. The minutes of the Dog Park Advisory Committee meeting held on March 16, 2016 were presented for information only.

PUBLIC COMMENTS

There were no public comments.

GOOD OF THE ORDER

Peccia noted that on Friday, April 22, 2016 at 10:00 am in the City Park there will be a check presentation ceremony from the Consumers Energy Foundation.

Schippers noted the next meeting of the Mayor's Youth Council will be held on Wednesday, April 20, 2016 at 4:00 pm and encouraged everyone to attend.

Spoelman stated MSU Extension is holding a workshop at the Carl T. Johnson Center on May 12, 2016 at 4:30 for shoreline landscaping and management to help prevent erosion. The name of the workshop is "Protecting Your Shoreline: A Workshop for Lakefront Property Owners". She noted the City of Cadillac is partnering with MSU Extension in this effort.

Schippers thanked Officer Rork, Chief Golnick, and the Cadillac Community Partnership – Lincoln School Neighborhood Watch group. She noted signs have been placed and the group is continuing to raise money for additional signs. She added there is currently a can drive in progress and pointed out that additional details can be found on the Facebook page.

Mayor Filkins noted the Parks Clean-Up Day is May 7, 2016 and encouraged everyone to participate. She stated there will be a public session held in the Council Chambers on April 19, 2016 from 5:00 pm to 6:00 pm to provide updates regarding the "Cadillac Commons" project and noted a second session will be held on April 26, 2015. She stated a new Mayor's Fit City Challenge will be starting on May 1, 2016. She added a Facebook page has been created and will be available in the near future. She challenged every organization and business in the City to develop an event to encourage physical activity and participation in the community.

CLOSED SESSION

Adjourn to closed session to consult with the City's attorney regarding trial or settlement strategy in connection with *Clam Lake Township and Haring Charter Township v State Boundary Commission, TeriDee LLC, and the City of Cadillac*, Supreme Court Docket No. 151800, for the reason that an open meeting would have a detrimental financial effect on the litigating or settlement position of the City; consult with the City's attorney regarding trial or settlement strategy in connection with *City of Cadillac v Michilake Corporation*, Wexford County Circuit Court Case No. 14-25602-CH, for the reason that an open meeting would have a detrimental financial effect on the litigating or settlement position of the City; and to consider attorney-client privileged, written legal opinions.

2016-101 Adjourn to closed session.

Motion was made by Spoelman and supported by Schippers to adjourn to closed session to consult with the City's attorney regarding trial or settlement strategy in connection with *Clam Lake Township and Haring Charter Township v State Boundary Commission, TeriDee LLC, and the City of Cadillac*, Supreme Court Docket No. 151800, for the reason that an open meeting would have a detrimental financial effect on the litigating or settlement position of the City; consult with the City's attorney regarding trial or settlement strategy in connection with *City of Cadillac v Michilake Corporation*,

Wexford County Circuit Court Case No. 14-25602-CH, for the reason that an open meeting would have a detrimental financial effect on the litigating or settlement position of the City; and to consider attorney-client privileged, written legal opinions.

Motion unanimously approved.

2016-102 Return to open session.

Motion was made by Schippers and supported by Meinhardt to return to open session.

Motion unanimously approved.

2016-103 Approve opinion of City Attorney.

Motion was made by Schippers and supported by Meinhardt to approve the opinion of the City Attorney as discussed and presented in closed session.

Ayes: Schippers, Meinhardt

Nays: Spoelman, Wohlfeill, Mayor Filkins

Motion failed.

ADJOURNMENT

Respectfully submitted,

Carla J. Filkins, Mayor

Sandra L. Wasson, City Clerk